

PURPOSE: To establish criteria for issuing a food package for qualifying conditions (Food Package III) that requires the use of a WIC formula because the use of supplemental foods is precluded, restricted, or inadequate to address their special nutritional needs.

DEFINITIONS:

Children's Special Health Care Services (CSHCS) is a program within Michigan Department of Health and Human Services. It is for children (< 21 years of age) and some adults with special health care needs. CSHCS is a part of Title V of the Federal Social Security Act.

Class I Formula means standard infant formulas produced by the manufacturer awarded the infant formula contract and authorized by the Michigan WIC Program. These are identified as Class I formulas on the list of Michigan WIC Authorized Formulas.

Class II Formula means extensively hydrolyzed exempt infant formulas and non-contract, non-exempt infant formulas authorized by the Michigan WIC Program. These are identified as Class II formulas on the list of Michigan WIC Authorized Formulas.

Class III Formula means all other exempt infant formulas and WIC-eligible nutritionals authorized by the Michigan WIC Program. These are identified as Class III formulas on the list of Michigan WIC Authorized Formulas.

Exempt Infant Formula means an infant formula intended for commercial or charitable distribution that is represented and labeled for use by infants who have inborn errors of metabolism or low birth weight, or who otherwise have unusual medical or dietary problems.

Medicaid is a program that provides healthcare coverage to low-income adults, children, pregnant women, elderly adults, and people with disabilities. Medicaid is administered by states, according to federal requirements.

Qualifying Conditions include but are not limited to preterm birth, failure to thrive, inborn errors of metabolism and metabolic disorders, gastrointestinal disorders, malabsorption syndromes, immune system disorders, severe food allergies that require an elemental diet, and life-threatening disorders, diseases and medical conditions that impair ingestion, digestion, absorption or utilization of nutrients that could adversely affect nutritional status.

WIC-Eligible Nutritionals means enteral products that are specifically formulated and commercially manufactured (as opposed to a naturally occurring foodstuff used in its natural state) to provide nutritional support for individuals with a qualifying condition, when the use of conventional foods is precluded, restricted, or inadequate.

WIC Formula means standard infant formulas, exempt infant formulas, and WIC-eligible nutritionals.

A. POLICY

1. Infants with a qualifying condition may be issued Class II or Class III formulas with medical documentation. For an infant's maximum monthly allowance of formula and supplemental foods, see Policy 7.04, Maximum Food Package, Tables B and C.
2. Infants 6 through 11 months of age, whose qualifying condition prevents them from consuming supplemental foods, may receive Class I, II, and III formulas at the same maximum monthly allowance as infants 4 through 5 months of age in lieu of supplemental foods, with medical documentation.
3. Infants 6 through 11 months of age receiving a Class II or Class III formula may substitute fruit and vegetable cash-value benefit (CVB) in lieu of infant fruits and vegetables per nutrition assessment unless otherwise indicated on the medical documentation. See Policy 7.04, Maximum Food Package, Tables B and C, for allowable quantities.
4. Clients 12 months and older who require the use of a WIC formula and infant foods may receive the following substitutions with medical documentation:
 - a. Infant fruits and vegetables in lieu of the fruit and vegetable CVB. Infant fruits and vegetables can be substituted for all or half of the CVB at the rate of \$1 to 6.25 ounces. The extra \$3 CVB, if substituted for juice in the standard food package, can be also substituted for infant fruits and vegetables. (See Policy 7.04, Maximum Food Package.)
Note: quantities of infant fruits and vegetables will be rounded down to the whole ounce.
 - b. Infant cereal to replace breakfast cereal. 32 oz infant cereal can be substituted for 36 oz of breakfast cereal.
5. Clients 12 months and older, except for those eligible for Food Package VII x 1.5, may receive up to 910 fl oz. reconstituted volume of formula per month in addition to supplemental foods, with medical documentation. (See Policy 7.04, Maximum Food Package, Tables D-H.)
 - a. Clients eligible for Food Package VII x 1.5 may receive up to 1,365 fl oz. reconstituted volume of formula per month in addition to supplemental foods, with medical documentation. (See 7.04, Maximum Food Package, Table I.)
6. Clients 24 months and older with a qualifying condition who require the use of a WIC formula may receive whole milk in place of low-fat or nonfat milk with medical documentation.
7. Food packages for qualifying conditions are not authorized for:
 - a. Infants whose only condition is a diagnosed formula intolerance or food allergy to lactose, sucrose, milk protein or soy protein that does not require the use of an exempt infant formula.
 - b. Infants with a non-specific formula or food intolerance.
 - c. Clients who have a food intolerance to lactose or milk protein that can be successfully managed with the use of one of the other WIC food packages.
 - d. Any client solely for the purpose of enhancing nutrient intake or managing body weight without an underlying qualifying condition.

8. Powdered and concentrated formula must be provided whenever possible to contain cost unless the requirements for issuing ready-to-feed (RTF) formula are met as described in Policy 7.02, Authorized WIC Foods. For clients with qualifying conditions and supporting medical documentation, RTF formula may be assigned for two additional conditions.
 - a. The two additional conditions are:
 - i. If a RTF form better accommodates the client's condition; or
 - ii. If it improves the participant's compliance in consuming the prescribed WIC formula.
 - b. Examples of authorized use of RTF formula for clients with qualifying conditions include, but are not limited to the following:
 - i. Preterm infant discharged from the Neonatal Intensive Care Unit (NICU) with a concern regarding immune function.
 - ii. Infant/child with multiple medical issues whose formula must be mixed exactly to maintain osmolality/osmolarity.
9. Medical documentation must be written on the DCH-1326, Women, Infants, and Children (WIC) Special Formula/Food Request (See Exhibit 7.03B). Instructions for completing the form can be found in DCH-1325, Women, Infants, and Children (WIC) Special Formula/Food Request Instructions (see Exhibit 7.03A).
 - a. Medical determination must be made by a health care provider licensed to write prescriptions under state law.
 - b. A health care provider's prescription form will not be approved in place of the WIC Special Formula/Food Request.
 - c. The WIC Special Formula/Food Request must include:
 - i. Qualifying condition(s).
 - ii. WIC formula name, including amount needed per day and duration the formula is prescribed. The duration must not exceed 12 months from the date on the form.
 - iii. When applicable, food restrictions and substitutions, including milk (i.e., whole milk, 2% milk, or plant-based beverage). See Policy 7.01, Food Package Determination and Customization.
 - iv. Contact information, signature, and date of the health care provider.
 - d. The WIC Special Formula/Food Request must be scanned into the client's record within 2 business days after approval.
 - e. Only when necessary, on an individual participant basis, a telephone order to a Competent Professional Authority (CPA) containing all medical documentation requirements may be used and must be documented in the client record. One month of benefits may be issued, with the expectation that the WIC Special Formula/Food Request must be provided to the local agency within two weeks of benefit issuance.
 - f. The amount of WIC formula and supplemental foods prescribed by a health care provider must not exceed the federal maximum allowance. (See Policy 7.04, Maximum Food Package.)

10. It is the responsibility of the health care provider to provide medical oversight to clients on Food Package III. It is the responsibility of the CPA to:
- Review and assign appropriate supplemental foods, including formula, according to the WIC Special Formula/Food Request.
 - Make non-formula supplemental food determinations and assign appropriate supplemental foods, when indicated by the health care provider on the WIC Special Formula/Food Request. (See Policy 7.01, Food Package Determination and Customization.)
 - Obtain clarification from the health care provider for insufficient or inconsistent information on the WIC Special Formula/Food Request, excluding qualifying condition(s), formula name, provider name and provider signature. The clarification must be documented on the original WIC Special Formula/Food Request and include the date and CPA's initials.
11. All WIC Special Formula/Food Requests that have a duration greater than 6 months must be re-evaluated at approximately the midpoint of the prescription. Re-evaluations must be documented in the client's record to include an assessment of the formula and its use.
12. A CPA or Registered Dietitian (RD) must process the completed WIC Special Formula/Food Request for a Class I or a Class II formula and complete the re-evaluation.
13. An RD must process the completed WIC Special Formula/Food Request for a Class III formula and complete the re-evaluation.
- If a local agency does not have an RD available, the CPA can request a State Agency RD to review for approval or re-evaluation. The CPA must confirm all medical documentation requirements are completed and included in the client's record.
 - Clients receiving Class III formulas must be designated as high risk. (See Policy 5.06, Nutrition Services for High Risk Clients.)

Required CPA and RD Approvals/Re-Evaluations by WIC Formula

WIC Formulas	CPA	Local Agency RD or State RD
Class I Formula	X	X
Class II Formula	X	X
Class III Formula		X

14. Class III Formulas with Special Requirements:
- Exempt infant formulas, such as Similac NeoSure and Enfamil Enfacare, may only be assigned to preterm or low birth weight infants who have reached 4 pounds, until catch up growth is complete or until 9 months to 1 year adjusted age.
 - Alfamino Infant, Elecare Infant, Enfaport, Neocate Infant, Neocate Syneo Infant, and Similac PM 60/40 may be assigned up to 1 year or 1 year adjusted age (for preterm infants).
 - Fortini may be assigned to term infants from birth up to 18 months of age or until 19.8 pounds, whichever is first.

15. WIC must coordinate with other federal, state, local government agencies or with private agencies that operate programs that also provide exempt infant formulas and WIC-eligible nutritionals to mutual clients, i.e., Medicaid. WIC may provide up to the maximum allowable amount of WIC formula in situations when formula is not provided by another agency.
 - a. If a WIC client is enrolled in CSHCS or Medicaid, and the formula is one that CSHCS or Medicaid may authorize under certain conditions, WIC will work collaboratively with CSHCS and Medicaid to assure the nutritional needs of mutual clients are met.
 - b. If a WIC client is enrolled in CSHCS or Medicaid and uses both a Class I formula and a Class II or III formula, arrangements may be coordinated so that WIC provides the Class I formula and CSHCS or Medicaid provides the Class II or III formula.
16. Clients with Inborn Errors of Metabolism:
 - a. If requested by a client or health care provider, nutritional counseling for a client with an inborn error of metabolism must be coordinated with a Children's Hospital of Michigan Metabolic Clinic Registered Dietitian.
 - b. Inborn errors of metabolism include, but are not limited to:
 - i. Galactosemia.
 - ii. Phenylketonuria (PKU).
 - iii. Maple syrup urine disease (MSUD).
 - iv. Methylmalonic acidemia (MMA).
 - c. Contact information for the Children's Hospital of Michigan Metabolic Clinic can be provided by the State Agency upon request.

References:

7 CFR 246.10

21 CFR 107.3

Michigan WIC Authorized Formulas list

American Academy of Pediatrics Committee on Nutrition. Nutritional needs of preterm infants. In: Kleinman RE ed. Pediatric Nutrition Handbook, ed 7, Elk Grove, Ill; American Academy of Pediatrics, 2014:83.

MDHHS, General Information For Families About Children's Special Health Care Services (CSHCS) at: <https://www.michigan.gov/mdhhs/assistance-programs/cshcs/general-information-for-families-about-cshcs>.

Medicaid, Centers for Medicare and Medicaid Services at: <https://www.medicaid.gov/medicaid/index.html>.

Cross References:

5.06 Nutrition Services for High Risk Clients

7.01 Food Package Determination and Customization

7.02 Authorized WIC Foods

7.04 Maximum Food Package

Exhibits:

7.03A DCH-1325, Women, Infants, and Children (WIC) Formula/Food Request Instructions

7.03B DCH-1326, Women, Infants, and Children (WIC) Special Formula/Food Request